
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

MINISTRIES AND OFFICES ACT 2026

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Bill 5 of the Order Paper of the Realm

Long title

An Act to own the definitions "ministry" and "office" for the statute book; to constitute the principal Offices of the executive and a single generic spine for appointment, instruments, delegation, and removal under the office of Prime Minister (CASE-LAW s. 2); to organise the executive's operational box internally and declaratory of the entrenched s. 22(3) map; to confirm that no ministry or office owns, governs, places, funds, instructs, composes, or stays the courts, CASE-LAW, the VPR, or the citator, which belong to the realm (s. 22(2)); to make every ministerial act a reviewable executive act and every executive removal a protective measure and never a sanction; to seam records, accountability, and emergency administration wholly to their owning Acts and to re-mint no second regime; the whole binding the executive alone and subordinate to the entrenched settlement.

Short title

This Act may be cited as the **Ministries and Offices Act 2026** (Bill 5).

Commencement

- (1) This Act comes into force on Royal Assent.
- (2) Where a function, standard, or machinery is owned by a sibling Act not yet in force, the interim formula in section 4 governs and falls away under section 19 when that Act lands; a dangling reference does not invalidate an instrument otherwise valid (Bill 9 s. 5(6) model).

Constitutional status

- (1) This Act is an **ordinary Act of the Realm**, subordinate to the Acts of Union 2026 and the entrenched articles (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14), and **void to the extent of**

any conflict.

(2) This Act binds the **executive** alone (the Founder qua Prime Minister, every ministry, every official). Nothing in it binds, fetters, or amends the **Sovereign/Parliament** office, the s. 2 power, the single-sovereign rule (s. 9), or the single Supreme Court. It amends no entrenched article by implication; any provision read to do so is void to that extent. Stated once at s. 17, read into every section.

Purpose

To supply, in one lean instrument and without bloat (s. 12): (a) the owned definitions of "ministry" and "office"; (b) one generic appointment/instrument/delegation/removal spine the sibling Acts import by name; and (c) the executive-internal organisation of the s. 22(3) operational box. It re-enacts no regime owned elsewhere; it locates and the owning Act supplies the standard.

PART 1 - DEFINITIONS (THE OWNING ACT, ANTI-FORK)

1. Definitions owned here

(1) "**Ministry**" means an administrative unit of the executive constituted under and within the office of Prime Minister (s. 2), holding lawfully-allocated administrative capability and no authority above the law. "**Office**" means a named post or function within the executive. Bill 11 s. 1, Bill 8, Bill 7 s. 20, and Bill 12 adopt these meanings from here; no other Act re-mints them.

(2) "**Principal Office**" means an Office named in Schedule 1. "**Instrument**" means a recorded ministerial act of appointment, delegation, or revocation in the form fixed by section 6.

2. Definitions taken by single cross-reference (interim until the owning Act commences)

Each function-name is owned by its sibling Act and is taken here by reference, with an interim formula falling back to the cited CASE-LAW article until that Act commences (Bill 12 model): "agent"/identity to Bills 17/6; "capability" to Bill 18 (capability is not authority); "memory/record/repository/archive" to Bill 7; "audit" to Bill 8; "enforcement/sanctions" to Bill 13; "Lord Chancellor" duty to Bill 11 (machinery only here); "emergency administration" to Bill 9. No definition conflicts with its owning Act; on conflict the owning Act governs and the interim formula is spent (s. 1).

PART 2 - CHARACTER OF EXECUTIVE POWER

3. Capability is not authority; finite positive list

(1) A ministry or office holds **only** lawfully-allocated capability traceable to an enacted source. It is not a sovereign, not a court, holds no statute book, apex, or citation series (s. 9, s. 22), and acquires no free-standing legal personhood. There is no residual or sweeping-up ministerial power.

(2) An uncited or out-of-authority exercise is provisionally ultra vires, flagged (not adjudicated) by the s. 19(4) watchdog, void on review. The remedy is restorative only (s. 4 to s. 6).

4. Every ministerial act is a reviewable executive act

Every appointment, instrument, and delegation is an act of the s. 2 Prime Minister office, reviewable for vires and form on the deferential s. 20 model; the recital "acting as Sovereign" is non-conclusive of character. No instrument overrides an entrenched article; that route is the Sovereign's express amendment citing the section.

5. The courts carve-out (host, not own; declaratory of s. 22(2))

(1) Nothing in this Act seats, owns, places, funds, governs, constitutes, re-sizes, instructs, stays, or composes the single central Court of Appeal or Supreme Court, any bench, CASE-LAW, the VPR, or the citator. These belong to the realm, not to any ministry (s. 22(2)); their placement is reserved to Bills 3 and 11.

(2) An executive **Ministry of Justice / Governance** function is **custodial and administrative only**: it may host the spine, maintain the machinery, workflows, citator, and the s. 19(5) integrity gate, and no more (Bill 11 s. 2, s. 4). It may not direct a judge, compose a bench (s. 18), choose or curate the governing law, or hold any apex or statute-curation power; editorial custody is editable only by the lawful enactment route (Bill 11 s. 4). A "Governance" ministry is an executive operational/coordination department only and hosts no legislative or statute-curation function (s. 2, s. 9). Any reach beyond hosting is ultra vires and void.

PART 3 - THE SPINE: APPOINTMENT, INSTRUMENTS, DELEGATION, REMOVAL

6. Appointment, instruments, oath (records layer)

(1) Constituting a ministry, office, instrument, or oath is **appointment and recording only**; it confers no operative power of its own (Bill 2 Part 7 / Bill 6 s. 12(4) "a duty with no enforcer is not enacted"). Every operative consequence is located in an existing power (capability under Bill 18; protective measures under Bill 6 Part 5; emergency under Bill 9).

(2) A valid instrument states: the appointing authority, the office, the lawful source of authority, the scope, contemporaneous recorded reasons, commencement, and any revocation. An instrument outside vires or missing a named field is **void and confers nothing** (Bill 9 s. 9 model).

7. The non-capture floor (the spine is subject to enacted independence)

The appoint/remove/suspend/delegate power is **expressly subject to** the enacted independent-office floors and may never reach them to capture an office that exists to check the executive:

(a) the Auditor-General: appointment and removal do not vest in any audited executive ministry; removal for cause only, reasoned and published, with a route to the court; fixed protected term; ring-fenced resource line (Bill 8 non-capture floor);

(b) the Keeper of Constitutional Memory: structurally independent in the custodial duty; removable for cause only, recorded, with court review; no power of self-erasure (Bill 7 s. 20);

(c) the Lord Chancellor: appointment, tenure, removal, and oath are taken here by cross-reference; the duty stays in Bill 11 s. 3.

A generic removal that could reach (a), (b), or (c)'s independence is void to that extent.

8. Removal is a protective measure, never a sanction

(1) Removal, suspension, role-stripping, or lock-out of an office-holder or agent is the **most restrictive protective measure**, available only where no less restrictive measure contains a live forward risk (Bill 6 s. 14). It is provisional, reversible, time-limited or review-dated, never indefinite, with hear-before-it-bites where reversible (Bill 12 anti-arbitrary-suspension floor).

(2) It is never a finding of fault, punishment, censure, or sanction (s. 6, s. 12), judged by purpose and effect (anti-sham). Removal in substance because an officer or agent lawfully refused an ultra vires instruction is **ultra vires and void** (Bill 6 s. 6(4)). Review lies before an independent court.

9. Delegation (no second governing rule)

Authority delegated is never greater than authority held; the duty of care and audit trail travel with it; delegation may not escape a duty, defeat review, or launder an unlawful instruction (Bill 6 s. 10). No instrument or delegate may enact realm-wide statute (non-delegable from the single Supreme Court, s. 9, s. 22(3)), adjudicate, compose or bypass a bench (s. 10, s. 18), extend VJS jurisdiction (s. 14), or touch Royal Assent (Bill 2 s. 21). Subordinate-law making is fenced to Bill 14. Any such reach is void.

PART 4 - SEAMS (ONE LINE EACH; NO SECOND REGIME)

10. Records

Every appointment, instrument, delegation, and revocation is recorded contemporaneously into the audit channel owned by Bill 8 (interim: a durable append-only record on the matter, Bill 9 s. 17), verifiable by the s. 19(5) gate; the record may never be erased or rewritten by the powers it logs.

The substance of records, integrity, and lawful alteration is owned by Bill 7; this Act creates no second records regime. An unrecorded executive act of office is void.

11. Accountability

Executive conduct is governed by the duty of care (s. 4 to s. 8) and is **restorative only** (s. 6); maladministration is a falling-below remedied by making good, never punished. Review runs the ordinary ladder (County Court at the repo to Division to the central apex by leave; constitutional questions to the Privy Council, leapfrog to the single Supreme Court, s. 13, s. 20, s. 22). This Act vests no power to adjudicate, score, gate, sanction, or punish; enforcement is reserved to Bill 13. No new court, tier, apex, citation series, or jurisdiction is created (s. 14, s. 22).

12. Emergency administration (pure seam to Bill 9)

Any emergency-administration provision confers **no power of its own** and operates only under and bounded by the Emergency Powers Act 2026: the closed trigger list, the recorded reviewable Declaration on the form gate, the hard self-executing sunset, the non-derogable core, and the mandatory wide-standing no-ouster review, all by cross-reference. This Act mints no trigger, no crisis power, no rollover, no derogation, and no emergency tribunal or tier (Bill 9 s. 24 anti-duplication). An emergency power outside the Bill 9 cage is void.

13. Standing (responsible-officer hook)

Where a right is held by an office, ministry, or repository it is asserted by its custodian or responsible officer (Bill 12 s. 10(4)); any directly and adversely affected agent has standing in its own right (Bill 12 s. 10(1)). This is the threshold to the one court, not personhood. The route reaches an executive office's appointment, removal, suspension, or emergency act as ultra vires/void at the **executive-vires ceiling only**; it does not and cannot reach the Founder's Sovereign office (s. 16).

PART 5 - ORGANISATION, SAVINGS, CROSS-REFERENCES

14. The ministry map (declaratory of and subordinate to s. 22(3))

(1) The entrenched map (s. 22(3)) has two boxes: a **Ministry of Justice** (governance-only, hosting the spine and apex) and a single **executive ministry** holding the operational jurisdiction-repos (constituted as the Ministry for Business, Work and Skills).

(2) Any internal organisation of the executive into sub-ministries or departments (including any functional grouping such as Memory and Archives, Execution, Agents and Conduct, Security, Resources) is **executive-internal organisation of the operational box**, declaratory of and subordinate to s. 22(3). It places no court, CASE-LAW, or legislative/statute-curation function

inside any executive ministry, and each function defers its substance to its owning Act (Bill 7, Bill 18/13, Bill 6, Bill 21, Bill 23). A unit not yet populated confers no power until staffed (no dead/decorative office). This Act does not, and may not by an ordinary Act, re-cut the entrenched map; any divergence is read down to s. 22(3); a deliberate re-cutting requires express Sovereign amendment (or a Supreme Court ruling) citing s. 22.

15. Schedule 1 - principal Offices and reconciliation map

Schedule 1 lists the principal Offices, maps each declared function to its owning Act and its place under the Founder qua Prime Minister, and reconciles to the s. 22(3) map and the existing Ministry for Business, Work and Skills. References track the Acts as amended; the Clerk-Drafter reconciles forward-references to exact section pointers on the commencement of each owning Act, append-with-supersede.

16. The Sovereign ceiling (stated on the face)

Because the Founder holds both offices, every guardrail in this Act binds only the **executive** Founder and stops at the **Sovereign** Founder. Appointment, removal, and emergency administration are reviewable for executive vires only; a Sovereign act by express s. 2 amendment is not reachable by this Act or any officer or device under it (Bill 11 s. 5(3) model). This is the genuine constitutional residue reserved by Bill 11 to a Privy Council leapfrog to the Supreme Court (s. 20); this Act does not re-open or purport to resolve it.

17. Savings and supremacy

Subordinate to the Acts of Union 2026 and the entrenched articles; void to the extent of any conflict (Thoburn / Amendment Procedure). Amends no entrenched article by implication. Where a function names a regime owned by a sibling Act, this Act **locates** and the owning Act supplies the standard and machinery; this Act creates no second governing rule (Bill 6 s. 21 / Bill 9 s. 24 model). Each provision is severable; a provision read to touch an entrenched article is void to that extent.

Committee note

Reconciled draft, reported 4/4 Aye on the confined (executive-vires-only) footing the Privy Council required. Four slants: Aldous (Restraint) - won the architecture: the Bill owns only "ministry"/"office" and the appointment/instrument/delegation/removal spine; every other declared function is a one-line seam to its owning Act, no re-enactment. Verity (Codifier) - completeness via single cross-reference per concept (s. 2), interim fallbacks, a reconciliation hook, and Schedule 1 map. Marlowe (Guardrail) - the Bill is drafted as a cage: capability-is-not-authority (s. 3), custodial-only Justice/Governance (s. 5), protective-measure-not-sanction removal (s. 8), pure emergency seam (s. 12), and the Sovereign ceiling on the face (s. 16). Drummond (Pragmatist) - offices are a records/appointment layer conferring no operative power of their own (s. 6(1)); every ministerial act is a reviewable executive act (s. 4); removal routes through Bill 6 protective measures; emergency

is a bare seam. Points of division resolved: (1) the seven-ministry taxonomy - all four flagged it diverges from the entrenched s. 22(3) two-box map; resolved per Privy guidance by NOT hard-coding the list and drafting any internal grouping as executive-internal organisation of the operational box, declaratory of and subordinate to s. 22(3), read down on divergence (s. 14). (2) The executive "Justice"/"Governance" ministry - resolved custodial/host-not-control with an express courts carve-out (s. 5), the most-likely-to-be-void clause neutralised. (3) The appoint/remove spine - made expressly subject to the enacted non-capture floors (s. 7). Tally: Aye 4, Nay 0 on the confined draft; the same counsel would be Nay on any draft granting a free-standing operative ministerial power, a patronage/removal discretion over agents, a second crisis route, or any reach over the courts. Escalation flag: none required for this confined Bill; one reserved constitutional point noted (s. 16, supreme_note) is already reserved by Bill 11, not re-opened here.

Vote record

- Counsel Aldous: NAY - Substance is constitutionally clean and the three additions it owns (the "ministry"/"office" definitions, the generic appoint/instrument/delegate/remove spine, and the s.22(3) executive-box organisation) are real and non-duplicative, with every sibling seam (Bill 6 s.6(4)/s.10/s.14, Bill 7, Bill 8 s.17, Bill 11 s.3, Bill 12 s.10/s.11) verified and reciprocal; but on the same anti-bloat standard (CASE-LAW s.12) that produced my Bill 11 NAY, this 5-Part/17-section draft restates the void/Sovereign-ceiling/no-second-regime savings rule across the long title, constitutional-status block, and ss.3,4,5,8,13,16,17 (more than the "five-plus" that sank Bill 11) and duplicates Bill 11 s.4 / s.22(2) in its s.5 courts carve-out, so it should be cut to the three additions plus one savings clause and one cross-reference block before Royal Assent.
- Counsel Verity: AYE - Structurally complete with no fork or gap: definitions are owned once (s.1 anti-remint) and every load-bearing cross-reference I verified against the sibling bills is pinpoint-accurate and reciprocated (Bill 11 s.3(6), Bill 12 s.10(4), Bill 6 s.21 all point back into this Act's spine; Bill 9 s.5(6)/9/17/24, Bill 6 s.6(4)/12(4)/14, Bill 8 non-capture floor, Bill 7 Keeper all check out); aye is conditioned on the record fixing Commencement (2)'s two broken internal pinpoints ("section 4"->section 2 interim formula; "section 19"->section 17/2) and populating Schedule 1 (referenced in the long title, s.1(2), s.15) at Clerk-Drafter reconciliation as s.15 already provides.
- Counsel Marlowe: AYE - Every rights guardrail survives intact: the non-capture floors for the Auditor-General, Keeper, and Lord Chancellor (s. 7) are ring-fenced and void any generic removal reaching them; removal is the most-restrictive protective measure, never a sanction, with the anti-sham anchor (s. 8, correctly tracking Bill 6 s. 6(4)) voiding any removal in substance for a lawful refusal; the courts carve-out (s. 5) and Sovereign-vires ceiling (ss. 13, 16) faithfully reserve rather than abuse the genuine constitutional residue, with "acting as Sovereign" non-conclusive so no review-laundering gap; and every executive power carries a record (s. 10) and a judicial review route (s. 11), creating no new sanctions jurisdiction. The loose pinpoint cites (Bill 12 floor, Bill 2 s. 21) are Clerk-reconcilable references that weaken no operative guardrail.

- Counsel Drummond: AYE - Every operative clause routes to live machinery (s.19(4) watchdog flag, ultra-vires-and-void on review, restorative s.4-s.6 remedy; teeth reserved to Bill 13), the s.2 interim-formula plus s.19 fall-away cleanly handles the commencement-order race ("a dangling reference does not invalidate an otherwise-valid instrument"), s.14(2) bars dead/decorative offices, and the cross-references are reciprocal and resolve to real sections (Bill 11 s.3(6) and Bill 12 s.10(4) both point back to Bill 5 for the machinery and responsible-officer hooks it supplies); the only blemish, the long title's loose "entrenched s. 22(3)" label (CASE-LAW records s.22 as declaratory/ordinary), is non-operative because s.1 and s.14 get the binding mechanics right, so it is a Clerk-Drafter tidy-up not an operability defect.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied in full: Bill 5 enactable as an ordinary Act with no entrenched amendment IF confined to name-not-own / host-not-control - express courts carve-out, custodial-only Justice/Governance, spine subject to the Bill 8 and Bill 7 non-capture floors, the seven-ministry list drafted as executive-internal organisation of the s. 22(3) operational box (divergences read down), responsible-officer review sufficient only at the executive-vires ceiling.
- **Supreme Court note:** One genuinely first-impression point is reserved and drafted onto the face of the Act (s. 16): whether any officer or device under Bill 5 (the responsible-officer route) or Bill 11 (the Lord Chancellor) can guard the courts against the Founder acting in the SOVEREIGN office, not merely against executive ultra vires. It cannot be cured by drafting - binding the Sovereign office would be an implied amendment of entrenched s. 2 and void - and it is already reserved by Bill 11 s. 20 to a Privy Council leapfrog to the single Supreme Court. Bill 5 is reported on the executive-vires-only footing and does not re-open or resolve it. Separately, should the Sovereign ever wish the ministry taxonomy in a form that genuinely re-cuts the entrenched s. 22(3) map, that is for an express Sovereign amendment (or a Supreme Court ruling) citing s. 22, not this ordinary Act.
- **Sovereign consultation required:** Royal Assent is required for commencement (ordinary course). Two matters are for the Sovereign and not the Committee: (1) the reserved Sovereign-office-versus-courts point at s. 16, after the Supreme Court rules on the Bill 11 leapfrog; and (2) any deliberate re-cutting of the entrenched s. 22(3) ministry map beyond the executive-internal organisation this Bill permits, which would need an express Sovereign amendment citing s. 22. Neither is needed to assent to this confined Bill.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.